

25PSCV04666 25PSCV04666

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-07-30

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Case Number: 25PSCV04666 Hearing Date: July 30, 2026 Dept: O

Tentative Ruling

Plaintiff's Application for Entry of

Default Judgment is DENIED without prejudice (no

statement of damages is filed)/alternatively

CONTINUED for the filing of the statement of

damages.

Background

This case arises from a motor vehicle accident that happened in November 2024.

On December 29, 2025, Plaintiffs CHRISTINE BAIK, HAIHUI SHEN, & THEODORE BAIK filed suit against Defendant Jorge Mendez (and Does).[1]

On April 23, 2026, default was entered against defendant.

On July 6, 2026, the instant default was filed.

Discussion

Plaintiffs seek entry of default judgment in

the total amount of \$77,557.42.

At this juncture, the application is denied/continued.

For one, the proposed order does not fill out paragraph 6 but instead fills out paragraph 7, which is designated for judgment debtors. It is unclear how Defendant, against whom no judgment has been entered, is a judgment debtor on a claim related to medical expenses (Code Civ. Proc., §§ 683.110, 685.010). If that is an error on Plaintiffs' part, the court requests a revised proposed judgment.

Next, this is an action for personal injury.

In such cases, a statement of damages must be served upon Defendant. (See Code of Civ. Proc., section 425.11.) Here, Plaintiffs have not filed said statement of damages.

Conclusion

Based on the foregoing, the application is denied without prejudice/continued; any application material must be filed at least 16 court days before the hearing date.

[1]

Doe Defendants have not been dismissed though they must be for entry of default judgment.